

1 The responsible officer etc

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SCHEDULE A1 ENFORCEMENT ORDERS

Part 1

Unpaid Work Requirement

[2.375]

1 The responsible officer etc

(1) For the purposes of this Part of this Schedule—

“the responsible officer”, in relation to a relevant person, means the person who is for the time being responsible for discharging the functions conferred by this Part of this Schedule on the responsible officer in accordance with arrangements made by the Secretary of State;

“relevant person”, in relation to an enforcement order, means a person subject to the order.

(2) The responsible officer must be an officer of a provider of probation services.

2 Obligations of responsible officer

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- (1) This paragraph applies where an enforcement order is in force.
- (2) The responsible officer must—
 - (a) make any arrangements that are necessary in connection with the requirements imposed by the order, and
 - (b) promote the relevant person's compliance with those requirements.
- (3) Sub-paragraph (4) applies where—
 - (a) an enforcement order is in force, and
 - (b) an officer of the Children and Family Court Advisory and Support Service or a Welsh family proceedings officer (as defined in [section 35](#) of the Children Act 2004) is required under section 11M to report on matters relating to the order.
- (4) The officer of the Service or the Welsh family proceedings officer (“the family officer”) may request the responsible officer to report to the family officer on such matters relating to the order as the family officer may require for the purpose of making a report under section 11M(1)(c) or (d); and it shall be the duty of the responsible officer to comply with such a request.

3 Enforcement order to specify relevant person's home local justice area

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- (1) An enforcement order must specify which local justice area is the relevant person's home local justice area.
- (2) The area specified must be the local justice area in which the relevant person resides or will reside.

3A Requirement and obligation of relevant person

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- (1) In this Part of this Schedule “unpaid work requirement”, in relation to an enforcement order, means a requirement that the relevant person must perform unpaid work in accordance with the instructions of the responsible officer as to—
- (a) the work to be performed, and
 - (b) the times, *during a period of 12 months*, at which the person is to perform it.
- (2) Sub-paragraph (1)(b) is subject to *paragraphs 7 and 9* [paragraph 9].
- (3) *But the period of 12 months is not to run while the enforcement order is suspended under section 11J(9).*

[2.375[1]]

Amendments—Words in italic repealed and words in square brackets inserted by the [Sentencing Act 2026, s 36\(2\)\(a\)\(i\)–\(iii\)](#) for certain purposes from 22 January 2026.

3B Number of hours of unpaid work to be specified in order

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- (1) The number of hours which a person may be required to work under an unpaid work requirement—
 - (a) must be specified in the relevant order, and
 - (b) must, in aggregate, be—
 - (i) not less than 40, and
 - (ii) not more than 200.
- (2) Sub-paragraph (3) applies where on the same occasion and in relation to the same person the court makes more than one enforcement order imposing an unpaid work requirement.
- (3) The court may direct that the hours of work specified in any of those requirements is to be—
 - (a) concurrent with, or
 - (b) additional to,

those specified in any other of those orders.

But the total number of hours which are not concurrent must not exceed the maximum number (see sub-paragraph (1)(b)(ii)).

- (4) The Secretary of State may by regulations substitute the maximum number of hours for the time being specified in sub-paragraph (1)(b).

3C Duty to keep in touch with responsible officer

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- (1) This paragraph applies where an enforcement order is in force.
- (2) The relevant person—
 - (a) must keep in touch with the responsible officer in accordance with any instructions the responsible officer may give the relevant person from time to time, and
 - (b) must notify the responsible officer of any change of address.
- (3) An obligation imposed by sub-paragraph (2) is enforceable as if it were a requirement of the enforcement order.

End of Document

3D Rules relating to enforcement orders

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The power of the Secretary of State to make rules under section 394 of the Sentencing Code in relation to persons subject to community orders or suspended sentence orders may also be exercised in relation to persons subject to enforcement orders.

[2.375[2]]

Amendments—[Sentencing Act 2020, s 410](#), [Sch 24, Pt 1, para 112\(1\), \(2\)](#).